AUSTRALIAN COMPETITION & CONSUMER COMMISSION

Ingenia – Peet – Flagstone JV

MN - 60048

Phase 1 Determination

Acquisition may be put into effect

12 November 2026

1. Determination and statement of reasons

Notified acquisition	Ingenia Communities Group (**Ingenia**) proposes to acquire 100% of the issued capital in Peet Limited (**Peet**) and enter into a joint venture transaction for Peet's Flagstone project (**Flagstone JV**), under which Brown-Neaves Investment (**BNI**), through Bechel Pty Ltd, will be a JV partner, holding a 49.9% interest (the **Acquisition**).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the *Competition and Consumer Act 2010* (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	The acquirer, Ingenia Communities Holdings Limited (**Ingenia**) is an Australian property group that owns, operates and develops land lease communities (**LLCs**). Ingenia's LLCs are catered towards residents aged over 55, across New South Wales, Victoria and Queensland. The target, Peet Limited (**Peet**) is an Australian residential real estate developer. Peet predominantly develops master planned community projects (**MPCs**). Peet also develops townhouses and apartments across New South Wales, Australian Capital Territory, Victoria, South Australia, Western Australia and Queensland. BNI is a capital investor whose existing investments primarily relate to MPC projects located in Western Australia and Queensland.
Overlap between the Parties	Ingenia and Peet (together, the **parties**) overlap in the supply of residential property developments in Australia.
Reasons for determination	Land lease communities (**LLCs**) are a form of residential housing whereby residents own their home but lease the underlying land from the community operator. Master planned communities (**MPCs**) are large-scale residential developments on greenfield land that are planned and delivered in phases over multiple years. When making a determination in Phase 1, the Australian Competition and Consumer Commission (**ACCC**) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the *Competition and Consumer Act 2010* (Cth) (the **Act**). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers. For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's merger assessment guidelines and interim merger process guidelines. In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form, information from third parties, information from prior matters and publicly available information. The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition would be unlikely to have

	the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC makes the following findings: • There is limited horizontal overlap between Ingenia and Peet. LLCs and MPCs are significantly differentiated forms of residential housing catering to different customer groups and are unlikely to be close substitutes. • With respect to the Flagstone JV, there is no material overlap between BNI's existing interests in MPC projects and Peet's Flagstone project. • Ingenia and BNI would continue to face competition from various alternative suppliers in each relevant geographic area.
Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.

Determination made by Commissioner Woodward pursuant to a delegation under section 25(1) of the Act